

The What, **Why** and **How** of the GPL

Much of the world's most important, commercially significant software is distributed under copyright licensing terms that give recipients freedom to copy, modify and redistribute the software known as Free and Open Source Software or FOSS. One could not send or receive e-mail, surf the World Wide Web, perform a Google search or take advantage of many of the other benefits offered by the Internet without free software. Businesses, however, must learn efficient ways to manage open source software without fear of legal risks.



The 'copyleft' licences of the Free Software Foundation are concerned with protecting the freedoms of programmers, but, more importantly, these licences protect the freedom of all users. The goal of the copyleft licences is to ensure that all users of a program, or any work based on the program, have four fundamental freedoms:

- The freedom to run the program for any purpose, without any additional permission
- The freedom to read, study, understand and use any know-how or techniques taught or contained by the source code of the program
- The freedom to modify, adapt, improve, or reuse any or all of the program code
- The freedom to share with anyone, or no one, both modified and unmodified versions of the program

The easiest way to understand licence terms is to begin with why, rather than what. The GNU licences include the GPLv2 (under which the Linux kernel is distributed), GPLv3 (which is now the licence for all GNU projects), LGPLv2 and LGPLv3 for different libraries, and AGPLv3 for Software as a Service. These licences have been written by teams comprising leading developers and their lawyers,

so that they can be used by all developers without any need for aid or assistance from lawyers. The purpose is to assure the four freedoms to all their users, and all users of modified versions or new programs containing portions of their programs. The essence of these freedoms is the prevention of proprietary enhancements to copylefted programs.

Copyright and copyleft

The primary legal regime that applies to software is copyright law. Copyleft, which uses functional parts of copyright law to achieve an unusual result (legal protection for free sharing) forms the core legal principle of these licences. It modifies, or 'hacks' copyright law, which is usually employed to strengthen the rights of authors or publishers, to instead strengthen the rights of users. Any work that is based on a copylefted program must also be licensed under the same copyleft licence. This is sometimes referred to as the 'hereditary effect' of copyleft or the 'share and share alike' principle.

With a lot of software now available under FOSS licensing terms, questions are often raised about compliance obligations, dual-licensing structures and enforcement strategies, especially now when monetisation by some copyright holders has happened at an